

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Welker	Team: Team # 8	CCRB Case #: 200815666	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 10/25/2008 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/25/2010	Precinct: 46
Date/Time CV Reported Thu, 10/30/2008 11:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/30/2008 11:57 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Catherin Thomas	23675	946318	046 PCT
2. Officers			46 PCT
3. SGT Daniel Mufaddi	01854	928822	046 PCT
4. POM Ezequiel Burgos	00211	941471	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dennis Harrison	14144	945805	046 PCT
2. POM Amaury Soriano	27412	946283	046 PCT
3. POM Richard Valdez	30750	942563	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Catherin Thomas	Abuse: PO CatherineThomas stopped § 87(2)(b)	A . Substantiated
B . Officers	Force: Officers used physical force against § 87(2)(b)	B . Exonerated
C . POM Ezequiel Burgos	Force: PO Ezequiel Burgos struck § 87(2)(b) with an asp.	C . Unsubstantiated
D . SGT Daniel Mufaddi	Force: Sergeant Daniel Mufaddi struck § 87(2)(b) with an asp.	D . Substantiated
E . SGT Daniel Mufaddi	Discourtesy: Sergeant Daniel Mufaddi spoke rudely to § 87(2)(b)	E . Unsubstantiated

Synopsis

On October 25, 2008, at approximately 7:00 PM, PO Catherine Thomas of the 46th Precinct stopped § 87(2)(b) at § 87(2)(b) in the Bronx (**Allegation A**). PO Thomas called for backup at the location and an unknown number of additional police officers arrived at the scene. Officers used physical force against § 87(2)(b) to handcuff him (**Allegation B**). PO Ezequiel Burgos and Sergeant Daniel Mufaddi of the 46th Precinct used an asp against § 87(2)(b) (**Allegation C and Allegation D**). § 87(2)(b) was handcuffed and taken to the 46th Precinct stationhouse. At the stationhouse, Sergeant Mufaddi used profanity with § 87(2)(b) (**Allegation E**). § 87(2)(b) was arrested § 87(2)(a) 160.50 § 87(2)(b). § 87(2)(b) sustained a back injury as a result of this incident.

§ 87(2)(b), § 87(2)(g) It is therefore recommended that **Allegation A** be closed, “**Substantiated.**” § 87(2)(g)
§ 87(2)(b) It is therefore recommended that **Allegation B** be closed, “**Exonerated.**” § 87(2)(g)
§ 87(2)(b) It is therefore recommended that **Allegation C** be closed, “**Unsubstantiated.**” § 87(2)(g)
§ 87(2)(b) It is therefore recommended that **Allegation D** be closed, “**Substantiated.**” § 87(2)(g)
§ 87(2)(b) It is therefore recommended that **Allegation E** be closed, “**Unsubstantiated.**”

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes. § 87(2)(b)
§ 87(2)(b)

On October 30, 2008, § 87(2)(b) filed a complaint with the CCRB over the phone (encl. 5a-5c). On November 20, 2008, the CCRB interviewed § 87(2)(b) (encl. 6a-6e).

On October 25, 2008, at approximately 7:00 PM, § 87(2)(b) was standing next to his building at § 87(2)(b) in the Bronx, in front of a grocery store with his friends § 87(2)(b), § 87(2)(b), and § 87(2)(b). They were not blocking the sidewalk or entrances to the grocery store. An unidentified male was doing pull ups on the scaffolding in front of the building. Two police officers, whom § 87(2)(b) identified as PO Catherine Thomas and PO Dennis Harrison of the 46th Precinct, approached the unidentified male and yelled at him. § 87(2)(b) told the officers that they should protect, not scold. PO Thomas told § 87(2)(b) to move away from where he was standing on the sidewalk because he was loitering. When § 87(2)(b) refused to move, PO Thomas told him again to move or she would issue him a summons. § 87(2)(b) refused to move and PO Thomas told him to go hang out in front of his own building. At that point, § 87(2)(b) and his friends walked next door to their building, § 87(2)(b).

§ 87(2)(b) briefly went inside his building to get some cigarettes and then went back outside in front of his building to smoke. PO Thomas and PO Harrison approached § 87(2)(b). PO Thomas asked § 87(2)(b) for his identification. § 87(2)(b) said that he needed to go into his house to get his identification. As § 87(2)(b) turned around, PO Thomas told him to put his hands behind his back. § 87(2)(b) said, “For what, I did not do anything wrong.” PO Thomas told § 87(2)(b) to put his hands behind his back again. PO Thomas grabbed § 87(2)(b)'s jacket and § 87(2)(b) pulled away from her. PO Thomas let go of his jacket and § 87(2)(b) walked three steps inside of the lobby of his building. PO Thomas followed § 87(2)(b) into the building. At that point, PO Harrison and twelve uniformed police officers ran towards § 87(2)(b). PO Harrison grabbed § 87(2)(b)'s left arm and § 87(2)(b) pulled his arm back. Then all twelve unidentified police officers grabbed him in an attempt to get him onto the ground. The police officers were grabbing his waist, legs, and arms. § 87(2)(b) resisted by trying to stand up and not to fall to the ground. After a few seconds, § 87(2)(b) stopped resisting and officers pushed him to the ground. § 87(2)(b) fell on his right side

with his right arm under his body. An unidentified police officer handcuffed his left arm and told him to put his hands behind his back. He was unable to put both hands behind his back because he was lying on one arm. § 87(2)(b) was not resisting.

Then a police officer hit § 87(2)(b) in his lower back six times with a black object. § 87(2)(b) thinks that the object was an asp because it looked like a steel rod. § 87(2)(b) turned his head and saw the police officer that hit him. § 87(2)(b) identified this officer as PO Ezequiel Burgos of the 46th Precinct. § 87(2)(b) was still not resisting in anyway. Then a police officer kned § 87(2)(b) in the left side of his neck. The investigation identified this officer as Sergeant Daniel Mufaddi of the 46th Precinct. § 87(2)(b) still did not have both hands behind his back. After he was kned in the neck, § 87(2)(b) was handcuffed. The police officers lifted him up and walked him to the van. Three to four unidentified police officers “tossed” § 87(2)(b) into the van. § 87(2)(b) was unable to describe the police officers who tossed him in the van. Once § 87(2)(b) arrived at the Precinct, he said that his back hurt. The officer that previously kned § 87(2)(b) said, “Shut the fuck up.”

§ 87(2)(b) was escorted to § 87(2)(b) in police custody. § 87(2)(b) was treated for lower back pain. After § 87(2)(b) was released from Central Booking he went to § 87(2)(b) for medical treatment on an unknown date. § 87(2)(b) received pain killers for his back pain.

Results of Investigation

Civilian Statements

§ 87(2)(b), Phone Statement

On December 4, 2008, § 87(2)(b) provided a phone statement to the CCRB (encl. 7).

On October 25, 2008, at approximately 7:00 PM, § 87(2)(b) walked out of her building and saw § 87(2)(b) standing outside of § 87(2)(b) smoking a cigarette. § 87(2)(b) went and stood beside § 87(2)(b). PO Thomas approached § 87(2)(b) and asked for his identification. § 87(2)(b) said that he was going to go inside to get his identification. As § 87(2)(b) was walking to the door, PO Thomas grabbed the back of his jacket. § 87(2)(b) pulled back from PO Thomas. § 87(2)(b) walked into the lobby of his building, followed by PO Thomas and PO Harrison. Additional police officers in uniform arrived at the scene and entered the lobby. Officers told § 87(2)(b) to stay outside. § 87(2)(b) could not see § 87(2)(b) through the front lobby window, but she saw police officers swinging black sticks.

§ 87(2)(b) missed her scheduled interview with the CCRB on December 10, 2008. A missed appointment letter was sent to her that day. Between December 11, 2008, and December 16, 2008, the CCRB called § 87(2)(b) three times and left messages asking to please call back. On December 15, 2008, a final please call letter was sent to § 87(2)(b). § 87(2)(b) has not responded to the CCRB.

§ 87(2)(b) Phone Statement

On December 4, 2008, § 87(2)(b) provided a phone statement to the CCRB (encl. 8).

On October 25, 2008, at approximately 7:00 PM, § 87(2)(b) was standing outside of a grocery store with § 87(2)(b). PO Thomas and PO Harrison approached an unidentified male who was doing pull ups on the scaffolding next to § 87(2)(b) and § 87(2)(b). The police officers yelled at the boy and then told § 87(2)(b) and § 87(2)(b) that they had to move from the front of the grocery store. § 87(2)(b) and § 87(2)(b) moved from the grocery store to the next building. § 87(2)(b) PO Thomas approached § 87(2)(b) and asked him for his identification. § 87(2)(b) said, "Let me go get it." As he was entering the building to get his identification, PO Thomas grabbed § 87(2)(b) and § 87(2)(b) pulled away. PO Thomas told § 87(2)(b) that he was going to be arrested. § 87(2)(b) went inside § 87(2)(b)'s apartment to get his identification. When he came out into the lobby, he saw 15 to 20 police officers in uniform hitting § 87(2)(b) in the ribs with nightsticks.

§ 87(2)(b) missed his scheduled interview with the CCRB on December 10, 2008. A missed appointment letter was sent to him that day. Between December 11, 2008, and December 16, 2008, the CCRB called § 87(2)(b) three times and was unable to leave messages because there was not a voicemail option. On December 15, 2008, a final please call letter was sent to § 87(2)(b). § 87(2)(b) has not responded to the CCRB.

§ 87(2)(b) Phone Statement

On December 5, 2008, the CCRB spoke with § 87(2)(b) (encl. 9).

§ 87(2)(b) was standing outside of § 87(2)(b) with § 87(2)(b) while he was smoking a cigarette. PO Thomas approached § 87(2)(b) and asked to see his identification. § 87(2)(b) said that his identification was inside his apartment. PO Thomas told § 87(2)(b) to put his hands behind his back. § 87(2)(b) said that he could go inside to get his identification. PO Thomas grabbed § 87(2)(b) and called for back up. § 87(2)(b) went inside his building. A group of police officers including PO Thomas followed § 87(2)(b) in the building. § 87(2)(b) also went inside the lobby of the building. In the lobby, the police officers beat § 87(2)(b) with nightsticks, kicked him, and stomped him. § 87(2)(b) was not resisting.

§ 87(2)(b) missed two scheduled interviews with the CCRB on December 10, 2008, and December 23, 2008.

§ 87(2)(b) Contact Attempts

On December 10, 2008, and December 15, 2008, the CCRB sent two please call letters to § 87(2)(b). Between December 4, 2008, and December 11, 2008, the CCRB called § 87(2)(b) five times and left messages asking to please call back. § 87(2)(b) has not responded to the CCRB (encl. 23a-23o).

§ 87(2)(b) Contact Attempts

On December 4, 2008, and December 9, 2008, the CCRB sent two please call letters to § 87(2)(b). Between December 4, 2008, and December 8, 2008, the CCRB called § 87(2)(b) three times and was unable to leave messages because there was not a voicemail option. On December 9, 2008, and December 11, 2008, the CCRB called § 87(2)(b) twice and left messages asking her to please call back. § 87(2)(b) has not responded to the CCRB (encl. 23a-23o).

§ 87(2)(b) CCRB Statement

On December 8, 2008, the CCRB spoke with § 87(2)(b) over the phone (encl. 10). On December 17, 2008, the CCRB interviewed § 87(2)(b) (encl. 11a-11e). § 87(2)(b) is a § 87(2)(b) black female with black hair and brown eyes. § 87(2)(b)

On October 25, 2008, at approximately 7:00 PM, § 87(2)(b) was entering her building, § 87(2)(b) in the Bronx. § 87(2)(b) saw approximately 30 police officers in uniform in the lobby. § 87(2)(b) saw approximately five to six police officers standing and kneeling around a male who was on his stomach on the ground. § 87(2)(b) was only able to describe the officers as white and Hispanic males. The officers were kicking the male and hitting him with nightsticks. § 87(2)(b) walked around the officers and looked down. She recognized the male was her neighbor, § 87(2)(b). § 87(2)(b) was unable to describe how many times officers kicked § 87(2)(b) or how many times they hit him with nightsticks. § 87(2)(b) did not know how many officers were holding nightsticks. § 87(2)(b) was not moving or resisting in anyway. § 87(2)(b) was yelling, "I didn't do nothing." § 87(2)(b) did not know if § 87(2)(b) was in handcuffs on the ground. § 87(2)(b) yelled at the officers and said, "How could you do this." The officers told § 87(2)(b) to leave and she explained that she lived in the building. Approximately one to two minutes after § 87(2)(b) entered the building officers lifted § 87(2)(b) up and escorted him out of the building.

Officer Statements

PO Catherine Thomas, Memo Book

PO Thomas had the following memo book entries regarding this incident (encl. 12a-12b). "1847: 92 x 1 F/O § 87(2)(b). 1900: 84 at 46th PCT. § 87(2)(b) perp was taken to the hospital."

PO Catherine Thomas, CCRB Statement

On March 4, 2009, the CCRB interviewed PO Catherine Thomas of the 46th Precinct (encl. 12b-12e). *PO Thomas is a § 87(2)(b) Hispanic female with black hair and brown eyes.*

On October 25, 2008, PO Thomas was scheduled to work foot post 1315 with PO Harrison from 5:30 PM to 2:05 AM. PO Thomas was dressed in uniform and working on foot.

On October 25, 2008, at approximately 7:00 PM, PO Thomas observed § 87(2)(b) with five individuals blocking the entrance to a grocery store on § 87(2)(b) in the Bronx. PO Thomas and PO Harrison approached the group and asked them to disperse. § 87(2)(b) told PO Thomas that she was "fucking harassing." The group, including § 87(2)(b) then left and walked to § 87(2)(b) which is right next door to the grocery store. § 87(2)(b) was blocking the entrance to § 87(2)(b).

PO Thomas and PO Harrison approached § 87(2)(b). PO Thomas intended to issue § 87(2)(b) a summons for failure to disperse. PO Thomas did not threaten to issue a summons to § 87(2)(b). PO Thomas asked § 87(2)(b) for his identification. § 87(2)(b) crossed his hands across his chest and said, "I do not have ID, what the fuck are you going to do." PO Thomas then told § 87(2)(b) to put his hands behind his back, which he refused to do. PO Thomas grabbed one of § 87(2)(b)'s arms. § 87(2)(b) began to swing his arms and said, "Get off me shorty." § 87(2)(b) was flailing his arms with closed fists. One of § 87(2)(b)'s friends, opened the door to the building. § 87(2)(b) dragged PO Thomas into the building all the way to the elevator in the lobby. § 87(2)(b) continued to resist by flailing his arms. PO Thomas called for backup.

Ten to fifteen additional police officers arrived at the scene. PO Thomas did not have any additional physical contact with § 87(2)(b). PO Harrison did not have physical contact with § 87(2)(b). PO Thomas did not know the names of the officers that arrived at the scene. Officers told § 87(2)(b) to stop resisting. At some point, § 87(2)(b) was face down on the ground. PO Thomas did not see how § 87(2)(b) got to the ground. PO Thomas did not see officers push § 87(2)(b). § 87(2)(b) continued to refuse to give his hands to officers on the ground. Officers tried to grab his hands. PO Thomas did not see any officers with asps out. PO Thomas did not see officer hit § 87(2)(b) with asps. PO Thomas did not see officers hit § 87(2)(b) with their hands, knees or other objects. PO Thomas did not know how long it took to handcuff § 87(2)(b). Once § 87(2)(b) was handcuffed, he was put in a van and taken to the Precinct. § 87(2)(b) was taken to the hospital for unknown injuries. PO Thomas did not hear officers use profanity with § 87(2)(b). PO Thomas did not hear officers say, "Shut the fuck up." PO Thomas was § 87(2)(b)'s arresting officer.

PO Dennis Harrison, CCRB Statement

On April 6, 2009, the CCRB interviewed PO Dennis Harrison of the 46th Precinct (encl. 13a-13b). *PO Harrison is a § 87(2)(b) black male with black hair and brown eyes. § 87(2)(b)*

On October 25, 2008, PO Harrison was scheduled to work with PO Thomas from 5:30 PM to 2:05 AM. PO Harrison was dressed in uniform and assigned to a foot post on Tiebout Avenue. PO Harrison does not have any memo book entries regarding this incident.

On October 25, 2008, at approximately 7:00 PM, PO Harrison and PO Thomas were on a foot post at 184th Street and § 87(2)(b). PO Harrison observed § 87(2)(b) and three males standing in front of a Chinese restaurant across the street. PO Harrison approached the individuals and told them that they

needed to move because people would get intimidated to enter the restaurant if four men were standing in front. § 87(2)(b) and the individuals were not blocking the entrance to the restaurant. § 87(2)(b) said that he was just buying tea and asked why the officers were harassing him. PO Thomas asked § 87(2)(b) for his identification and he said that it was in his house. PO Harrison did not recall how PO Thomas responded to this. PO Thomas did not threaten to issue a summons to § 87(2)(b).

§ 87(2)(b) and his friends moved to the next building, § 87(2)(b) and smoked cigarettes in front of the building. PO Thomas approached § 87(2)(b) and told him that she was going to issue him a summons. PO Thomas asked § 87(2)(b) for his identification. § 87(2)(b) said that he did not have his identification. PO Thomas then grabbed § 87(2)(b)'s hand and asked him to put his hands behind his back. PO Harrison grabbed one of § 87(2)(b)'s arms. § 87(2)(b) stiffened his arms. PO Thomas called for back up. PO Thomas told § 87(2)(b) to put his hands behind his back several times, which he refused to do. § 87(2)(b) was slowly walking towards his building while he was resisting. § 87(2)(b) entered his building while the officers were still grabbing his arms. § 87(2)(b) continued to resist. At that point, an unknown number of police officers arrived at the scene and entered the lobby including PO Burgos and Sergeant Mufaddi. PO Harrison did not know the names of the other officers that arrived. Officers tried to handcuff § 87(2)(b) but he still refused to put his hands behind his back. At some point, § 87(2)(b) fell to the ground during the struggle. PO Harrison dropped his asp and Sergeant Mufaddi picked up the asp. Sergeant Mufaddi hit § 87(2)(b) an unknown number of times with a nightstick. PO Harrison did not know where Sergeant Mufaddi hit § 87(2)(b). PO Harrison held § 87(2)(b) while officers tried to handcuff § 87(2)(b). PO Harrison did not hit § 87(2)(b) with his hands, a nightstick or any other object. PO Harrison did not see other officers hit § 87(2)(b) with a nightstick. PO Harrison did not see officers hit § 87(2)(b) with their hands, knees, or other objects. It took approximately one minute after § 87(2)(b) was on the ground for officers to handcuff him.

Once at the 46th Precinct, § 87(2)(b) complained of back pain. PO Harrison escorted § 87(2)(b) to § 87(2)(b). PO Harrison did not say "shut the fuck up" to § 87(2)(b) nor did he hear other officers say this.

Sergeant Daniel Mufaddi, CCRB Statement

On May 7, 2009, the CCRB interviewed Sergeant Daniel Mufaddi of the 46th Precinct (encl. 14a-14d). *Sergeant Mufaddi is a § 87(2)(b) white male with brown hair and brown eyes.* § 87(2)(b)

On October 25, 2008, Sergeant Mufaddi was scheduled to work as patrol supervisor with PO Burgos, PO Soriano, and PO Valdez from 6:00 PM to 2:00 AM. Sergeant Mufaddi was dressed in uniform and assigned to a marked patrol van. Sergeant Mufaddi does not have any memo book entries regarding this incident.

On October 25, 2008, at approximately 7:00 PM, PO Thomas called a 10-85 at § 87(2)(b) in the Bronx. Sergeant Mufaddi entered the lobby of § 87(2)(b) with PO Burgos, PO Soriano, and PO Valdez. Sergeant Mufaddi observed an unknown number of police officers attempting to handcuff § 87(2)(b). Sergeant Mufaddi did not recall if § 87(2)(b) was on the ground or standing up. § 87(2)(b) was resisting by refusing to give his hands to police officers. § 87(2)(b) held his hands out in front of him. Sergeant Mufaddi did not recall how else § 87(2)(b) was resisting. Sergeant Mufaddi did not recall if he, PO Soriano, PO Burgos, or PO Valdez had any physical contact with § 87(2)(b). Sergeant Mufaddi did not recall if the struggle was on the ground at any point. Sergeant Mufaddi did not recall if he used a nightstick against § 87(2)(b). Sergeant Mufaddi did not see officers hit § 87(2)(b) with nightsticks or any other objects. Sergeant Mufaddi did not see officers hit or kick § 87(2)(b) at any point. Sergeant Mufaddi did not see officers knee § 87(2)(b) nor did he knee § 87(2)(b). It took approximately 30 seconds to a minute to handcuff § 87(2)(b). After § 87(2)(b) was handcuffed, Sergeant Mufaddi and his partner escorted § 87(2)(b) to the Precinct stationhouse. Sergeant Mufaddi did not recall if officers used profanity with § 87(2)(b). Sergeant Mufaddi did not use profanity with § 87(2)(b).

PO Amaury Soriano, CCRB Statement

On May 8, 2009, the CCRB interviewed PO Amaury Soriano of the 46th Precinct (encl. 15a-15d). PO Soriano is a § 87(2)(b) Hispanic male with black hair and brown eyes. § 87(2)(b)

On October 25, 2008, PO Soriano was scheduled to work sector patrol with PO Valdez, PO Burgos, and Sergeant Mufaddi. PO Soriano was dressed in uniform and assigned to marked van 5849. PO Soriano does not have any memo book entries regarding this incident.

On October 25, 2008, PO Soriano responded to a 10-85 at § 87(2)(b) in the Bronx with PO Burgos, PO Valdez, and Sergeant Mufaddi. When the officers arrived at the scene, they entered the lobby of § 87(2)(b). PO Soriano did crowd control in the lobby and next to the entrance of the building. PO Soriano was not able to see § 87(2)(b) because there were a large number of police officers in the lobby. PO Soriano was unable to approximate the number of police officers who were present in the lobby. PO Soriano and his partner were on the scene for approximately five minutes. § 87(2)(b) was transported in their van back to the stationhouse. PO Soriano did not recall if he, PO Burgos, PO Valdez, or Sergeant Mufaddi had any physical contact with § 87(2)(b) during this incident. PO Soriano did not use a nightstick against § 87(2)(b). PO Soriano did not recall if officers used a nightstick against § 87(2)(b). PO Soriano did not recall if his partners used nightsticks against § 87(2)(b). PO Soriano did not see an officer use their knee to hit § 87(2)(b). PO Soriano did not knee § 87(2)(b). PO Soriano did not recall if officers used profanity against § 87(2)(b).

PO Richard Valdez, Memo Book

PO Valdez had the following memo book entry regarding this incident (encl. 16a-16b). "1931: respond to 85 post 7c § 87(2)(b)

PO Richard Valdez, CCRB Statement

On June 3, 2009, the CCRB interviewed PO Richard Valdez of the 46th Precinct (encl. 16c-16d). PO Valdez is a § 87(2)(b) Hispanic male with black hair and brown eyes.

On October 25, 2008, PO Valdez was scheduled to work patrol with PO Burgos, PO Soriano, and Sergeant Mufaddi. PO Valdez was dressed in uniform and assigned to a marked van.

On October 25, 2008, at approximately 7:00 PM, PO Valdez, PO Burgos, PO Soriano, and Sergeant Mufaddi responded to a 10-85 at § 87(2)(b) in the Bronx. PO Burgos was the operator of the van and Sergeant Mufaddi was sitting in the front passenger seat. When the officers arrived at the scene, they entered the lobby. § 87(2)(b) was already in handcuffs. There were approximately 10 to 20 police officers in the lobby. PO Valdez did not recall which officers were present. § 87(2)(b) was screaming and cursing at PO Thomas. He said, "Fuck you." PO Valdez did not hit § 87(2)(b) with a nightstick. He did not see any other officers hit § 87(2)(b) with a nightstick. PO Valdez did not knee § 87(2)(b) nor did he see other officers do such. PO Valdez did not use any profanity with § 87(2)(b). He did not see any other officers use profanity with § 87(2)(b). § 87(2)(b) was escorted to the stationhouse in the van with PO Valdez, PO Burgos, PO Soriano, and Sergeant Mufaddi.

PO Ezequiel Burgos, CCRB Statement

On June 3, 2009, the CCRB interviewed PO Ezequiel Burgos of the 46th Precinct (encl. 17a-17e). PO Burgos is a § 87(2)(b) Hispanic male with black hair and brown eyes. § 87(2)(b)

On October 25, 2008, PO Burgos was scheduled to work patrol with PO Soriano, PO Valdez, and Sergeant Mufaddi from 6:00 PM to 2:00 AM. PO Burgos was dressed in uniform and assigned to a marked patrol car. PO Burgos was the operator of the vehicle. PO Burgos does not have any memo book entries regarding this incident.

On October 25, 2008, at approximately 7:00 PM, PO Burgos, PO Soriano, PO Valdez, and Sergeant Mufaddi responded to a 10-85 at § 87(2)(b) in the Bronx. The officers entered the lobby of the building and saw § 87(2)(b) standing in handcuffs beside PO Thomas and PO Harris. There were many officers on the scene. PO Burgos did not know the names of additional officers who were present at the scene. § 87(2)(b) was moving his body around when he was in handcuffs and yelling. PO Burgos did not recall specifically what PO Burgos was yelling. PO Burgos did not use a nightstick or any other object against § 87(2)(b). He did not see officers use a nightstick or any other object against § 87(2)(b). PO Burgos did not knee § 87(2)(b) nor did he see any other officer knee § 87(2)(b). PO Burgos did not use any profanity against § 87(2)(b) nor did any other officer. PO Burgos was in the lobby of the building briefly. He exited the building to unlock the patrol van. PO Burgos and his partners transported § 87(2)(b) to the stationhouse.

Medical Records

§ 87(2)(b)
(a)
§ 87(2)(b)
)
§ 87(2)(b)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Police Documents

Sprint

The Sprint indicates that a 10-85 was made at § 87(2)(b) on October 25, 2008, at 6:41 PM (encl. 18a). Various sectors from the 46th Precinct responded to the scene. A sergeant also responded to the scene. An individual was arrested at this location at 7:12 PM.

Roll Call

The roll call indicates that PO Harrison, PO Thomas, Sergeant Mufaddi, PO Burgos, PO Soriano, and PO Valdez were scheduled to work during the date and time of the incident (encl. 19b-19e).

OLBS

The online booking sheet indicates that § 87(2)(b) refused to move from the sidewalk when told to do so (encl. 19q). § 87(2)(b) then refused to give PO Thomas documentation. § 87(2)(b) refused to be handcuffed by flailing his arms, pushing, shoving, kicking, and punching apprehending officers.

Arrest Disposition

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

In her one-year tenure with the NYPD, PO Thomas has no substantiated allegations in her CCRB history (encl. 3a). In his three-year tenure with the NYPD, PO Burgos has no substantiated allegations in his CCRB history (encl. 3b). In his eight-year tenure with the NYPS, Sergeant Mufaddi has no substantiated allegations in his CCRB history (encl. 3c).

There is no notice of claim on file for § 87(2)(b) (encl. 23m)

Officer Identification

§ 87(2)(b) alleged that the driver of the van he was transported in hit him with an asp. § 87(2)(b) described this officer as a Hispanic male, who weighs 260 pounds and is between 5'10" and 5'11" tall. The investigation identified PO Burgos as the driver of the van. § 87(2)(g) [REDACTED]

Although PO Burgos did not admit to using an asp against § 87(2)(b), § 87(2)(b) identified him as the officer that did so. § 87(2)(g) [REDACTED]

§ 87(2)(b) alleged that an officer who was present at the scene of the incident, used profanity with him at the 46th Precinct stationhouse. § 87(2)(b) said that his happened when he entered the stationhouse. Given that PO Thomas, PO Harrison, and PO Burgos were present at this time, it is highly likely that this was one of the police officers that transported § 87(2)(b) in the van to the stationhouse. § 87(2)(b) described this officer as a slim white male with blonde hair, who was 5'11" tall. Sergeant Mufaddi is the only white male who was in the van. Although Sergeant Mufaddi has brown hair, not blonde hair, the additional descriptive details that § 87(2)(b) provided matches Sergeant Mufaddi's pedigree. Given the

aforementioned information, the investigation identified Sergeant Mufaddi as the subject officer of Allegation E.

Undisputed Facts

It is undisputed that PO Thomas stopped § 87(2)(b). It is undisputed that § 87(2)(b) resisted arrest by refusing to put his hands behind his back.

Disputed Facts

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g) § 87(2)(b) said that officers grabbed his waist, legs, and arms and pushed him to the ground. PO Burgos hit him with an asp six times on his lower back. Then Sergeant Mufaddi kned him on the left side of his neck. According to § 87(2)(b), § 87(2)(b), and § 87(2)(b) numerous police officers hit § 87(2)(b) with asps. They were unable to provide descriptions of the officers who used nightsticks. § 87(2)(b) and § 87(2)(b) told the CCRB that officers also kicked § 87(2)(b) § 87(2)(g) § 87(2)(b)

PO Thomas and PO Harrison told the CCRB that officers struggled to handcuff § 87(2)(b) because he refused to put his hands behind his back. PO Harrison said that § 87(2)(b) fell as a result of the struggle. None of the police officers interviewed for this case admitted to using an asp against § 87(2)(b) or kneeling him. PO Burgos denied using an asp against § 87(2)(b). PO Harrison identified Sergeant Mufaddi as the officer who hit § 87(2)(b) with a nightstick.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) alleged that at the 46th Precinct stationhouse, PO Mufaddi said, “Shut the fuck up.” PO Mufaddi denied using profanity with § 87(2)(b). PO Thomas, PO Harrison, and PO Burgos did not hear officers use profanity against § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) alleged that officers “tossed” him in the van after he was handcuffed. § 87(2)(g)
§ 87(2)(g)

Allegation A: PO Catherine Thomas stopped § 87(2)(b)

In order to forcibly stop someone, as described in the NYPD Street Encounters Chart, a police officer must have reasonable suspicion that a person is committing, has committed, or is about to commit a crime (encl. 1a-1b). See also People v. DeBour 40 N.Y.2d 210 (1976). A police officer is permitted to use reasonable force to stop and question a subject.

According to PO Thomas, she initially approached § 87(2)(b) and several individuals in front of a grocery store on § 87(2)(b) and told them to disperse. § 87(2)(b) argued with PO Thomas, but eventually moved with his friends to his apartment building next door to the grocery store. PO Thomas then approached § 87(2)(b) and asked for his identification because she intended to issue him a summons for failure to disperse. PO Thomas did not tell § 87(2)(b) that she was going to issue him a summons. PO Thomas said that § 87(2)(b) refused to provide his identification. According to § 87(2)(b) he told PO Thomas that he was going to get his identification from his apartment. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to Penal Law 240.20, a person is guilty of disorderly conduct when they congregate with other people in a public place and refuse to comply with a lawful order of the police to disperse (encl. 1c). In this case, PO Thomas' reason for stopping § 87(2)(b) was based on his failure to disperse. By PO Thomas' own statement, we know that § 87(2)(b) did move when ordered to do so. § 87(2)(b) then went in front of his apartment building to smoke a cigarette. § 87(2)(b) was not failing to disperse because PO Thomas did not order him to disperse at § 87(2)(b)

The conclusion in *PD v. Dowd and Rose* states that "an improper search or seizure is punishable misconduct if the officer acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his action be proper" (encl. 1d-1e). Here, § 87(2)(b) was not the only person congregating in front of the grocery store and the apartment building. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed, "Substantiated."

Allegation B: Officers used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

Patrol Guide procedure 203-11 requires all members of the service at the scene of a police incident to use minimum necessary force to effect an arrest (encl. 2a-2b). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed, "Exonerated."

Allegation C: PO Ezequiel Burgos used an asp against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** be closed, "Unsubstantiated."

Allegation D: Sergeant Daniel Mufaddi used an asp against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted] It is therefore recommended that **Allegation D** be closed, “**Substantiated.**”

Allegation E: Sergeant Daniel Mufaddi used discourteous language with § 87(2)(b) [Redacted] at the 46th Precinct stationhouse.

§ 87(2)(g) [Redacted]
[Redacted] It is therefore recommended that **Allegation E** be closed, “**Unsubstantiated.**”

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: